24NNCV05081 24NNCV05081

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-08-24

Motion: PLAINTIFF’S MOTION FOR APPROVAL OF PAGA SETTLEMENT

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Case Number: 24NNCV05081 Hearing Date: August 24, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

NOE H. LOPEZ, individually and on behalf of other aggrieved
employees,

Plaintiff(s),

vs.

SCHNEIDER
NATIONAL CARRIERS, INC., et al.,

Defendant(s).

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CASE NO.: 24NNCV05081

[TENTATIVE]
ORDER RE: PLAINTIFF’S MOTION FOR APPROVAL OF PAGA SETTLEMENT

Dept.
3

8:30
a.m.

August 24,
2026

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I. INTRODUCTION

On October 15, 2024, plaintiff Noe H. Lopez ("Plaintiff") filed this action against defendant Schneider National Carriers, Inc. ("Defendant") for penalties under the Private Attorney General Act ("PAGA"). The parties have agreed on the terms of a settlement and now seek court approval of those terms. Under the proposed settlement, Defendant will pay a Gross Settlement Amount of $850,000. Of that amount, $297,500 will be paid as attorney fees (35%), $21,308.42 will be paid as costs, $14,500 will be paid to a settlement administrator, Phoenix Class Action Administration Solutions, and $7,500 will be paid to Plaintiff as a service award. Of the remaining $509,191.58, at least $178,217.05 will be paid to the aggrieved employees and $330,974.53 will be paid to the California Labor and Workforce Development Agency ("LWDA") pursuant to Labor Code section 2699(i).

On March 6, 2026, counsel of Jeffrey Kissinger and Kolten Trimble, who have been deputized by the LWDA in a separate case in San Bernardino County (Case No. CIVSB2509084), filed an objection on the grounds that proper notice was not provided and that the settlement is not fair, adequate, and reasonable.

On May 27, 2026, Defendant's counsel filed a response to the objection and moved to strike the objection on the grounds that plaintiffs deputized in a separate PAGA action lack standing to "object." (Response, p. 2.) Since other PAGA plaintiffs are not entitled to object to a PAGA settlement, the objection is STRICKEN. (Turrieta v. Lyft, Inc. (2024) 16 Cal.5th 664, 715.)

II. LEGAL STANDARD

PAGA is "a procedural statute allowing an aggrieved employee to recover civil penalties for Labor Code violations that otherwise would be sought by state labor law enforcement agencies." (Amalgamated Transit Union, Local 1756, AFL-CIO v. Superior Court (2009) 46 Cal.4th 993, 1003.) The court "shall review and approve any settlement of any civil action filed pursuant to [PAGA]." (Lab. Code, § 2699, subd. (l)(2).) However, because PAGA does not provide the standard or criteria for the review and approval of settlements, the trial court “should evaluate a PAGA settlement to determine whether it is fair, reasonable, and adequate in view of PAGA’s purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws.” (Moniz v. Adecco USA, Inc. (2021) 72 Cal.App.5th 56, 77.) To determine if a PAGA settlement is fair, reasonable, and adequate, courts consider factors “including the strength of the plaintiff’s case, the risk, the stage of the proceeding, the complexity and likely duration of further litigation, and the settlement amount. (Id. at p. 75.)

III.
DISCUSSION

A.
Notice
to the LWDA

A proposed PAGA settlement must be submitted to LWDA at the same time that it is submitted to the court for review and approval. (Lab. Code § 2699, subd. (l)(2).) Plaintiff’s counsel attaches proof that the settlement was submitted to the LWDA at the same time the motion was filed. (Leviant Decl., Ex. 3.) Accordingly, the Court finds that this requirement is satisfied.

B.
Aggrieved
Employees

The “Aggrieved Employees” are defined as “all persons who were employed by Defendant in California in a non-exempt or hourly-paid position and who received wages for work performed for Defendant at any time during the Settlement Period.” (Leviant Decl., Ex. 1, Section A, ¶ 1.) Each Aggrieved Employee’s portion of the settlement will be calculated by “multiplying the Aggrieved Employees PAGA Payment by a fraction, the numerator of which is the total number of pay periods in which an Aggrieved Employee received wages for hours worked during the Settlement Period, and the denominator of which is the total aggregate number of pay periods in which all Aggrieved Employees received wages for hours worked during the Settlement Period. (Id., ¶ 35).)

C.

Fair,
Reasonable, and Adequate

Under Dunk v. Ford Motor Co. (1996) 48 Cal.App.4th 1794, a presumption of fairness exists where “(1) the settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small.” (Id. at 1802.)

Here, the settlement agreement seems to have been reached through arm’s-length bargaining. The parties participated in a full-day mediation before Jason Marsili, Esq. on August 28, 2025. (Leviant Decl., ¶ 14.) There also seems to have been sufficient investigation and discovery. Prior to litigation, Defendant produced wage and hour policies and practices as well as time and payroll data. (Leviant Decl., ¶ 13.) Lastly, Plaintiff’s counsel has extensive experience litigating wage-and-hour class and representative actions. (Leviant Decl., ¶¶ 26-32.) Accordingly, the settlement agreement is presumptively fair. (Dunk, supra, 48 Cal.App.4th at p. 1802.)

D. Civil Penalties

Plaintiff’s counsel declares that based on Defendant’s payroll time records and wage statements, the number of PAGA Pay Periods at issue was estimated to be 103,043 for the 2,700 Aggrieved Employees. Using a penalty of $100, and assuming only 10% of the penalties could be established, Defendant’s exposure was $1,030,430; the maximum plausible potential exposure was approximately $1,878.252.50. The settlement is approximately 45.25% of that maximum exposure calculation. Plaintiff argues the proposed civil penalties are fair reasonable given the risks of continued litigation, including a lower potential recovery at trial and the Court’s discretionary power to reduce any penalties awarded. Accordingly, the amount allocated to civil penalties is approved.

E.
Settlement
Administration and Costs

The parties have agreed to engage Phoenix as the third-party administrator for the settlement funds. Phoenix has agreed to administer the settlement for a capped fee of $14,500. Plaintiff's counsel declares that in his experience, $14,500 is a reasonable amount in light of the number of Aggrieved Employees and pay periods. (Leviant Decl., ¶ 41.) Accordingly, the administrator costs of $14,500 is approved.

F.
Service
Award

The proposed settlement distributes $7,500 to Plaintiff as a service award. This amounts to 0.8% of the gross settlement amount, compared with 25% of the gross settlement amount allocated to the Aggrieved Employees. Plaintiff declares that he explained the factual background used to prosecute the claims in this case and assisted in identifying potential witnesses. (Lopez Decl., ¶¶ 7-9.) Plaintiff also declares that he made himself available to answer any questions that arose immediately before and during the full day mediation, and discussed strategy with counsel. (Id., ¶¶ 9-10.)

Plaintiff does not identify the approximate number of hours spent on preparing for deposition or the mediation. However, given the age of the case and the overall percentage of the gross settlement amount, the request for a $7,500 service award is approved.

G. Attorneys' Fees and Costs

Plaintiff's counsel requests $297,500 for fees and $21,308.42 in costs to be paid out of the proposed settlement funds. Awarding a percentage of the total settlement value is a common method in determining a fee award. Here, Plaintiff's counsel's request for 35% of the recovery amount is reasonable and Plaintiff's counsel attaches a copy of a document identifying all the expenses incurred. Accordingly, the request for fees and costs is approved.

H. Released Claims

The term "Released Claims" means:

any claim for civil penalties under the

PAGA and all other related remedies available under the PAGA for all allegations, claims, debts, rights, demands, charges, complaints, actions, causes of action, guarantees, interest, costs, expenses, attorneys' fees, damages, obligations or liabilities of any and every kind, contingent or accrued, that are, were or reasonably could have been alleged or asserted based upon the facts and/or theories alleged in the PAGA claims filed in the Lawsuit (including the Second Amended Complaint to be filed as a condition of this settlement), and/or in any notice provided pursuant to PAGA by Plaintiff to the LWDA and Defendant (including, without limitation, in Plaintiff's August 4, 2024 PAGA Notice and September 17, 2025 First Amended PAGA Notice), arising out of, based on or related to any violation of California Labor Code Sections 96, 98.6, 200, 201, 201.3, 201.5, 201.7, 202, 203, 203.5, 204, 204a, 204.1, 204.2, 205, 205.5, 206, 206.5, 210, 212, 221, 222, 222.5, 223, 226, 226.2, 226.3, 226.7, 226.8, 227.3, 231, 232, 232.5, 233, 245, 246, 351, 353, 404, 432, 432.3, 432.5, 432.7, 432.8, 450, 510, 511, 512, 551, 552, 558, 1101, 1102, 1102.5, 1174, 1174.5, 1182, 1182.12, 1194, 1197, 1197.1, 1197.5(k), 1198, 1198.5, 1199, 1290, 1292, 1293, 1294.1, 1301, 1391, 1475, 1527, 1695, 1695.55, 1696, 1696.5, 1700.31, 1771, 1774, 1775, 1776, 1811, 1815, 2673, 2698, 2699, 2699.3, 2800, 2802, 2810, 2810.5, 3366, 3457, 6300, 6301, 6309, 6311, 6400, 6401, 6402, 6403, 6404, 6406, 6423, 6424, 6425, 6426, 6427, 6428, 6429, 6430, 6431, 6432, 6433, 8397.4, California Code of Regulations, Title 8, § 3395, and the Wage Order pertaining to suitable seating and any other Wage Order deemed to apply, that occurred, arose or accrued at any time during the Settlement Period.

(Leviant Decl., Ex. 1, Section B, ¶ 11.)

In a previously issued tentative ruling, the Court expressed concern that the definition of "PAGA Released Claims" was too broad because it could not compare the statutes identified in the proposed settlement with those stated in the LWDA letter. In a supplemental declaration, Plaintiff's counsel provides a chart identifying each statutory provision in the "Released Claims" and where it appears in the LWDA letter. The Court has reviewed the copy of the LWDA letter attached as Exhibit A to Plaintiff's supplemental filing and is satisfied with Plaintiff's explanation.

IV.
CONCLUSION

Based on the above, the Court GRANTS Plaintiff's motion for an order approving the settlement.

Moving party to give notice.

Dated
this 24th
day of August 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at ALHDEPT3@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.